ELECTRONICALLY FILED
11/1/2022 10:44 AM
Heidi Percy
County Clerk
Snohomish County, WASH
Case Number: 22-2-00824-31

FILED
Court of Appeals
Division I
State of Washington
11/2/2022 9:40 AM

HONORABLE PAUL W. THOMPSON

SUPERIOR COURT OF THE STATE OF WASHINGTON

FOR THE COUNTY OF SNOHOMISH

In the matter of: RACOON HILL, LLC, dba DOC'S RIVERSIDE TAP HOUSE Petitioner, v. WASHINGTON STATE LIQUOR AND CANNABIS BOARD, Respondent.	Case No. 22-2-00824-31 NOTICE OF APPEAL TO COURT OF APPEAL DIVISION I RAP 2.2(a)(1), (3) RAP 5.2(a)

TO: JASON W. MILLER, Attorney for Respondent
ASSISTANT ATTORNEY GENERAL OF WASHINGTON
1125 Washington St. SE
PO Box 40100
Olympia, WA 98504-0100

AND TO: THE CLERK OF THE ABOVE-ENTITLED COURT

PLEASE TAKE NOTICE that Petitioner Racoon Hill, LLC, dba Doc's Riverside Tap House ("Racoon Hill"), hereby seeks review by the designated appellate court of an Order and Decision Affirmed filed October 7, 2022 ("Order").

APPEALS

VIRGINIA P. SHOGREN, P.C.
961 W. OAK COURT
SEQUIM WA 98382
360-461-5551

Racoon Hill seeks review of the following:

ORDER FINDING No. 1: The Petitioner has not established that any error occurred below. (Order, p. 1.)

ORDER FINDING No. 2: It is not clear to this Court what basis proposed exhibits 32 and 33 could be admitted under, what relevance they would have to these proceedings, and as such they are not admitted. (Order, p. 3.)

ORDER FINDING No. 3: This Court is not persuaded that any error of law occurred below, that there is substantial evidence to support the factual findings, [and] that the Petitioner has failed to meet its burden . . . . (Order, p. 3.)

ORDER FINDING No. 4: This Court is not persuaded that any legal error occurred below, nor that the agency acted unconstitutionally as applied, or outside of its authority. (Order, p. 3.)

ORDER FINDING No. 5: This Court cannot find that any of the asserted "material" facts are in fact material as defined by law. (Order, p. 4.)

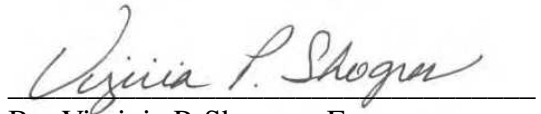
ORDER FINDING No. 6: This Court is not persuaded that somehow not responding to a suspension is asserting some right that does not clearly exist. (Order, p. 4.)

A true and correct copy of the trial court's Order filed October 7, 2022 is attached hereto as Exhibit A and is incorporated herein by this reference.

Respectfully submitted,

VIRGINIA P. SHOGREN, P.C.

Dated: November 1, 2022



By: Virginia P. Shogren, Esq.
WSBA No. 33939
961 W. Oak Court
Sequim, WA 98382, 360-461-5551
vshogren@gmail.com
Attorney for Petitioner/Appellant Racoon Hill

EXHIBIT A

22-2-00824-31
CTD 38
Courts Decision
13227667

FILED
2022 OCT -7 AM 9:04
HEIDI PERCY
COUNTY CLERK
SNOHOMISH CO. WASH

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF SNOHOMISH

In the Matter of:

RACOON HILL, LLC
Dba DOC'S RIVERSIDE TAP HOUSE,

Petitioner,

Vs.

WASHINGTON STATE LIQUOR
AND CANNABIS BOARD,

Respondent.

No. 22-2-00824-31

ORDER AND DECISION
AFFIRMED
- Amended -

CLERK ACTION REQUIRED

1. INTRODUCTION, SUMMARY OF DECISION, AND ORDER

The Initial and Final Order below are affirmed. Resolution of this case is ultimately not complicated: a suspension was in effect, the initial suspension was not timely contested, and a second violation occurred. The conduct that led to the second violation was clearly prohibited during the initial suspension. The Petitioner has not established that any error occurred below. The order is **affirmed**.

This matter, having come on regularly for on September 1st, 2022 on the Petitioner's request for judicial review from a Final Order which upheld an administrative suspension of the Petitioner's license. This Court having reviewed the administrative record, Exhibit 31 which was admitted as a supplemental exhibit, the briefing of Counsel, and heard Oral argument affirms the Final Order as set forth below.

2. FACTUAL BACBROUND AND PROCEDURAL HISTORY

Given that the facts as found below are not challenged this Court will accept all factual findings as contained in the Initial and Final Order as adopted on January 11th, 2022 and will only briefly recite them as needed. Generally this case comes on for a request for Judicial Review under RCW 34.05.514 which was filed after the denial for Reconsideration on February 11th, 2022 by Racoon Hill the Petitioner herein. The request for Judicial Review asks this Court to review the orders of the board as well as generally the suspension order. The suspension at issue is the second suspension. The Initial Order Granting Agency's Motion for Summary Judgment and Denying Licensee's Motion for Summary Judgment was issued on December 6th, 2021. The first suspension is not before this Court, and was not before Administrative Law Judge, as it was never contested prior to it going into effect.

The Petitioner in this case raises a number of legal challenges to the Washington State Liquor and Cannabis Board's (WSLCB) actions, to its authority generally, and to the order upholding the suspension below which is now the subject of this action. The Petitioner also asserts on appeal that there are material issues of fact which would have precluded summary judgment below. In addition the Petitioner has asked this Court to supplement the record with proposed exhibits 31,32, and 33.

The Court has admitted exhibit 31 at the hearing on September 1st, 2022. It is not clear to this Court what basis proposed exhibits 32 and 33 could be admitted under, what relevance they would have to these proceedings, and as such they are not admitted.

As set forth below this Court is not persuaded that that any error of law occurred below, that there is substantial evidence to support the factual findings, that the Petitioner has failed to meet its burden, and that the order below should be **affirmed**.

3. DECISION

This Court is not persuaded that any legal error occurred below, nor that the agency acted unconstitutionally as applied, or outside of its authority.[1] [2]Judicial review is governed by statute as set out in RCW 34.05.570. Review is only be granted under the enumerated basis under the statute. Id. Although not entirely clear it appears that the Petitioner is challenging the agency action under RCW 34.05.570 (3)(a-c) or (i). The Petitioner appears to generally assert that the agency acted outside it's authority, that it acted both under an unconstitutionally provision and as applied, that the agency has engaged in an unlawful procedure or decision making process, or has acted arbitrarily and capriciously[3]. It is uncontested factually that the first notice was not timely contested through the agency process. It is also uncontested that the first notice of suspension was not complied with when alcohol was served. It is unclear when the above is conceded what unconstitutional behavior the agency engaged in or how the

---

[1] Given the scope of review as set out in RCW 34.05.566 it is not entirely clear which provision the Petitioner is moving for review under. This Court has reviewed the record and arguments under each section of the statute and will only discuss those which appear to somewhat more clearly be at issue.
[2] The assignments of error do not appear to clearly track the argument or briefing in this case as supplied by the Petitioner.
[3] In closing at oral argument it was asserted that this enforcement action was done for political reasons. This *could* be taken as an assertion that the action was taken for "arbitrary and capricious" reasons.

Administrative Law Judge committed some error from the uncontested factual basis as provided.

Stated differently: a suspension was in effect, the suspension was violated, and a further suspension was based on that second violation. Based on the record before the Court the Petitioner has not met its burden.

Additionally both sides moved for summary judgment alleging that there were not any material issues of fact. The Petitioner now attempts to argue that there are issues of material fact. It was conceded below that there are not.[4] Even given this concession below and the procedural posture of the case this Court has reviewed the entire agency record and the asserted "material" facts. This Court cannot find that any of the asserted "material" facts are in fact material as defined by law.

From the briefing in this Court as well as below it is generally clear that the Petitioner has asserted that the agency did not have the ability to act as it did under the Governor's proclamations related to Covid restrictions. The key inquiry though procedurally and factually is set forth above. A suspension was in effect, it was not contested timely, and a violation occurred when alcohol was served. The time to contest the initial suspension passed without any objection being raised, argued, or litigated. This Court is not persuaded that somehow not responding to a suspension is asserting some right that does not clearly exist.[5]

Given the above this Court cannot find that the Petitioner has met its burden. The order below is affirmed. As the prevailing party the WSLCB may propose any additional

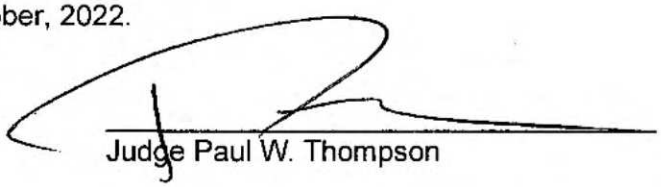
---

[4] The Petitioner was represented by different Counsel at this level of review.

[5] The Petitioner now asserts generally that they did not respond due to the fact they could face criminal liability. This is not persuasive given the record below. This assertion is in contradiction with the Motion for Summary Judgment and declarations filed by the Petitioner in which it asserted that the failure to respond was due to a misunderstanding of the time period in which to respond.

order that it believes is necessary to complete the record in accordance with this decision.

DONE IN OPEN COURT this 3rd day of October, 2022.



Judge Paul W. Thompson

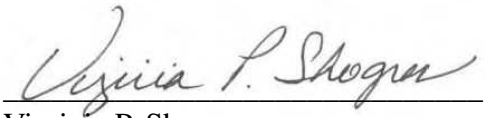
DECLARATION OF SERVICE

I declare under penalty of perjury under the laws of the State of Washington that on November 1, 2022, a true and correct copy of the foregoing document was served upon the parties listed below via the method indicated:

NOTICE OF APPEAL TO COURT OF APPEAL DIVISION I

JASON W. MILLER, Attorney for Respondent
ASSISTANT ATTORNEY GENERAL OF WASHINGTON
1125 Washington St. SE
PO Box 40100
Olympia, WA 98504-0100
Via email to:
GCEEF@atg.wa.gov
Jason.miller@atg.wa.gov
Kelli.lewis@atg.wa.gov
Counsel for Respondent Washington State Liquor and Cannabis Board

Dated this 1st day of November, 2022, at Sequim, Washington.



Virginia P. Shogren
961 W. Oak Court
Sequim, WA 98382
360-461-5551

SNOHOMISH SUPERIOR COURT

November 02, 2022 - 9:40 AM

Filing Notice of Appeal

Transmittal Information

Filed with Court:	Court of Appeals Division I
Appellate Court Case Number:	Case Initiation
Trial Court Case Title:	in Re Racoon Hill Dba
Trial Court Case Number:	22-2-00824-31 (JIS Number: 22-2-00824-3)
Trial Court County:	Snohomish Superior Court
Signing Judge:	
Judgment Date:	

The following documents have been uploaded:

- NOA_Notice_of_Appeal_20221102093953D1688041_0003.pdf
  This File Contains:
  Notice of Appeal
  The Original File Name was 22-2-00824-31 NACA.pdf

Comments:

Sender Name: Tara M White - Email: tara.white@snoco.org

Note: The Filing Id is 20221102093953D1688041